



**IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH**

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CRM-M-34194-2026

Date of Decision:19.06.2026

Malkit Singh

.....Petitioner

Vs.

State of Punjab and Others

.....Respondents

CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA

Present:- Mr. Vaibhav Narang, Advocate
for the petitioner.

DEEPAK GUPTA, J. (ORAL)

By way of present petition filed under Section 528 of the Bharatiya Nagarik Suraksha Sanhita, 2023, petitioner prays for issuance of necessary directions to respondent Nos.2 and 3 to immediately record the supplementary statement of the petitioner/complainant in FIR No.98 dated 16.04.2026 registered at Police Station Lopoke, Amritsar Rural under Sections 103, 351(3), 191(3) and 190 of BNS, 2023 and Section 25 (Act No.54 of 1959) and to formally nominate the accused Sukhjinder Singh.

Learned counsel submits that during investigation petitioner has come to know about the name of one of the culprits and therefore, he wants to get his supplementary statement recorded but respondent No.3 is refusing to do so. Learned counsel also submits that petitioner requested to respondent Nos.2 and 3 to secure and preserve the mobile phone and tower location data of the accused Sukhjinder Singh for the window of occurrence on 15.04.2026 so as to ensure fair, impartial and time bound investigation. The detailed representation dated 04.05.2026 (Annexure P-2) was also made to respondent No.2- Senior Superintendent of Police (SSP), Amritsar Rural, Amritsar in this regard but no action has been taken so far.

Notice of motion.

Mr. Manmeet Singh Teji, AAG, Punjab accepts notice on behalf of respondents- State.

Learned State counsel submits that respondent Nos.2 and 3 have no objection so as to record the supplementary statement of the petitioner and to dispose of the representation (Annexure P-2).

Having regard to aforesaid circumstances, the present petition is hereby disposed of with the direction to respondent Nos.2 and 3 to decide the representation (Annexure P-2) in accordance with law and to join the petitioner in investigation for recording his supplementary statement as requested by him. However necessary investigation shall be carried out by the investigating agency as per law.

(DEEPAK GUPTA)
JUDGE

June 19, 2026

Neetika Tuteja

Whether Speaking/reasoned	Yes/No
Whether Reportable	Yes/No